

PROCLAMATION No. 31/2002
A PROCLAMATION TO PROVIDE FOR THE REVISED
CONSTITUTION OF THE BENISHANGUL GUMUZ
REGIONAL STATE

WHEREAS, after an extensive and detail deliberation, it has become appropriate to amend the Constitution, which has been in force until now based on the prevailing objective reality in order to expressly provide for the separation of power and accountability of government organs;

NOW, THEREFORE, in accordance with Article 99 of the Constitution of Benishangul Gumuz Regional State, the Revised 2002 Constitution of the Regional State is hereby proclaimed as follows:

1. **Short Title**

This Proclamation may be cited as the "Benishnagul Gumuz Regional State Revised Constitution Approval Proclamation No31 /2002".

2. **Approval of the 2002 Revised Constitution**

After an extensive review of the content and the format of the provisions of the Regional State's Constitution which was adopted by Proclamation No. 1/1996, the 2002 Revised Constitution of the Benishangul Gumuz Regional State is hereby approved.

3. Applicability of Existing Laws

Any existing law shall continue to be in force in so far as it is consistent with the Revised Constitution.

4. Effective Date

This proclamation shall come into force as of December 2nd 2002.

Done at Assosa this December 2nd of 2002.

**YAREGAL AYSHESHIM
THE BENISHANGUL - GUMUZ REGIONAL STATE
PRESIDENT**

PREAMBLE

We, the nationalities and peoples' of the Region of Benishangul Gumuz; dedicated to promote the rule of law, to accelerate our economic and social development, to further strengthen our languages, culture and development by exercising our rights of self determination; to ensure sustainable democracy and peace that have been brought by, having our identity respected and; paying sacrifice, that we have established on the basis of common understanding and equality;

We, the nationalities and peoples of the Region, having our own geography and gone through continuous interaction in various forms and at various levels for centuries, it is our strong belief that we can embark on better development based on, and by promoting our common values;

Realizing that our Constitution which has been in force does not provide for transparency and separation of power, accountability and efficiency in the conduct of government organs and could not bring about the accelerated social and economic development;

We, the nationalities of Berta, Gumuz, Shinasha, Mao and Como and other peoples residing in the Region, realizing that accelerated economic development and sustainable peace and democracy can only be achieved if we have a Constitution which is consistent with the Constitution of the Federal Democratic Republic of Ethiopia and the objective reality prevailing in the Region;

Believing that the 1995 Constitution should, after having made a thorough examination, be amended to reflect transparency, accountability to the people and efficiency in Government organs by taking into account the objective reality prevailing in the Country and the Region;

The Regional Council in its first extra-ordinary session conducted on the 2nd of December 2002 has approved the amended Constitution after having deliberated on it in detail.

CHAPTER ONE **GENERAL PROVISIONS**

Article 1

Nomenclature of the Regional State

The Constitution proclaims the democratic establishment of the Benishangul Gumuz Regional State. Accordingly, the State shall be known as "The Benishangul Gumuz Regional State".

Article 2

Indigenous Nationalities of the Region

Notwithstanding the recognition of other peoples living in the Region, the indigenous nation nationalities of the Region are Berta, Gumuz, Shinasha, Mao and Como.

Article 3

Boundary of the State

The Benishangul Gumuz Regional State shares its boundaries in the north and north-east with Amhara Region; in the east with Oromia Region, in the south with Gambella Peoples' Region and in the west with the Sudan.

Article 4

Flag and Emblem

The Benishangul Gumuz Regional State shall have its own flag and emblem:

- 1/ The flag shall be red, black, yellow and green surrounded by white frame.
- 2/ The Regional State shall have an emblem surrounded by a bamboo having at its center a gold in a dish and a machine gear. Details shall be determined by law.

Article 5

The State Anthem

The Regional State shall have its own Anthem. The Regional State Anthem shall reflect the ideals of the Constitution, the commitment of the peoples of the Regional State to live together with the rest peoples of Ethiopia in a democratic order and of their common destiny. Details shall be determined by law.

Article 6

Languages

- 1/ The working language of the Regional State shall be Amharic.
- 2/ All languages of the Region shall enjoy equal protection.
- 3/ The nations and nationalities of the Region shall have the right to get education in their languages or in the languages of their choice.

Article 7
Capital City of the State

The capital city of the Region shall be Asosa.

Article 8
Expression of Gender

The provisions of this Constitution stipulated in the masculine gender shall also apply to the feminine gender.

CHAPTER TWO

FUNDAMENTAL PRINCIPLES
OF THE CONSTITUTION

Article 9
Ultimate Authority of the People

- 1/ The Peoples of the Benishangul Gumuz Regional State shall be the ultimate authority of the Regional State.
- 2/ The ultimate authority of the people shall be manifested through their elected representatives and the direct democratic participation of the people themselves.

Article 10
Supremacy of the Constitution

- 1/ Without prejudice to the supremacy of the Constitution of the Federal Democratic Republic of Ethiopia:
- 2/ This Constitution shall be the supreme law of the Regional State. Any law, customary practice or decision of any governmental organ or public official which is inconsistent with this Constitution shall be of no effect;
- 3/ Any resident of the Regional State, government organ, political organization and other association along with their officials shall have the duty to observe, enforce and obey this Constitution.
- 4/ The assumption of state power in any other way except in accordance with the provisions of this Constitution is prohibited.

Article 11
Human and Democratic Rights

- 1/ Human rights and freedoms are inviolable and inalienable. They are inherent in the dignity of human beings.
- 2/ Human and democratic rights of individuals and peoples shall be respected.

Article 12

Separation of State and Religion

- 1/ State and religion are separate.
- 2/ There shall be no state religion.
- 3/ The State shall not interfere with religious activities, and religion shall not interfere with state affairs.

Article 13

Conduct and Accountability of Government

- 1/ The conduct of affairs of the Regional State shall be transparent.
- 2/ An elected representative may be recalled by the people if the latter lack confidence in him. Particulars shall be determined by law.
- 3/ Any Public official or elected representative shall be accountable for any failure in his official duties.

CHAPTER THREE

FUNDAMENTAL RIGHTS AND FREEDOMS

Article 14

Effectiveness and Definition

- 1/ All legislative, executive and judicial organs of the Regional State, at all levels of government, shall have the responsibility and duty to observe and enforce the provisions of this Chapter.
- 2/ The fundamental rights and freedoms specified in this Chapter shall be interpreted in conformity with the Universal Declaration of Human Rights, International Covenants on Human Rights and Principles of other relevant international instruments, which Ethiopia has adopted.

PART ONE

HUMAN RIGHTS

Article 15

The Right to Life, the Security of Person and Liberty

Every person has the inviolable and inalienable right to life, the security of person and liberty.

Article 16
The Right to Life

Every person has the right to life. No person shall be deprived of his life except as a punishment for a serious criminal offence determined by law.

Article 17
The Right to Security of Person

Everyone has the right to protection against bodily harm.

Article 18
The Right to Liberty

- 1/ No one shall be deprived of his liberty except in accordance with the established legal procedures.
- 2/ No person may be subjected to arbitrary arrest, and be detained without a charge or conviction against him.

Article 19
Prohibition against Inhuman Treatment

- 1/ Everyone has the right to protection against cruel, inhuman or degrading treatment or punishment.

2/ No one shall be held in slavery or servitude. Trafficking in human beings for whatever purpose is prohibited.

3/ No one shall be required to perform forced or compulsory labor.

4/ For the purpose of sub-Article 3 of this Article, the phrase "Forced or compulsory labor" shall not include:

(a) Any work to be done in the ordinary course of imprisonment or during conditional release from such imprisonment which is imposed in accordance with the law;

(b) Any service exacted in lieu of military service in case of conscientious objectors;

(c) Any service exacted in case of emergency or calamity threatening the life or well-being of the community;

(d) Any economic and social development activity voluntarily performed by a community within its locality.

Article 20

Right of Persons Arrested

- 1/ Person arrested has the right to be informed promptly, in a language he understands of the particular of the charge and the reason for his arrest.
- 2/ Person arrested has the right to remain silent. Upon arrest, he has the right to be informed promptly, in a language he understands, that any statement he makes may be used as evidence against him in court.
- 3/ Arrested person has the right to be brought before a court of law within 48 hours of his arrest. Such time shall not include the time reasonably required for the journey from the place of arrest to the court. On appearing before a court, he has the right to be given prompt and specific explanation of the reasons for his arrest due to the alleged crime committed.
- 4/ Every person has an inalienable right to petition the court to order his physical release where the arresting police officer or the law enforcement officer fails to bring him before a court within the prescribed time and to provide reasons for his arrest. Where the interest of justice requires, the court may order the arrested person to remain in custody or, when requested, remand him for a time strictly required to carry out the necessary investigation. In determining the additional time necessary for investigation, the court shall ensure that the responsible

law enforcement authorities carry out the investigation, respecting the arrested person's right to a speedy trial.

- 5/ An arrested person shall not be compelled to make confession or admission, which could be used in evidence against him. Any evidence obtained through coercion shall not be admissible.
- 6/ An arrested person has the right to be released on bail. The court may, however, in exceptional cases prescribed by law, deny his bail right or demand adequate guarantee for the conditional release of the arrested person.

Article 21

Rights of Accused Person

- 1/ An accused person has the right to a public trial before an ordinary court of law within a reasonable time after having been charged; however the court may hear cases in a closed session only with a view to protecting the right to privacy, of the parties concerned, public morals and national security.
- 2/ An accused person has the right to be informed of the particulars of the charge brought against him and to be given the charge in writing.
- 3/ During the proceedings, an accused person has the right to be presumed innocent until proved guilty according to law, and not to be compelled to testify against himself.

- 4/ An accused person has the right to full access to any evidence produced against him, to examine witnesses testifying against him, to adduce or to have evidence produced in his own defense, and to obtain the attendance of and examination of witnesses on their behalf before the court.
- 5/ An accused person has the right to be represented by a legal counsel of his choice, and, if he does not have sufficient means to pay for the service and a miscarriage of justice would result, he shall be provided with legal representation at state's expense.
- 6/ An accused person has the right to appeal to the competent court against an order or a judgment passed by a court which heard the case.
- 7/ An accused person has the right to request for the assistance of an interpreter at state expense where the court proceedings are conducted in a language he does not understand.

Article 22

Rights of Person Held in Custody and Convicted Prisoner

- 1/ A person held in custody and person imprisoned upon conviction and sentencing has the right to treatment respecting his human dignity.
- 2/ A person shall have the opportunity to communicate with, and to be visited by, his spouse or partner, close relatives, friends, religious counselor and medical doctor, and his legal counsel.

Article 23

Non-retroactivity of Criminal Law

- 1/ No one shall be held guilty of any criminal offence on account of any act or omission that did not constitute a criminal offence at the time of commission or omission, nor shall a heavier penalty be imposed on any person than the one that was applicable when the criminal offence was committed.
- 2/ Notwithstanding the provision of sub-Article 1 of this Article, a law promulgated subsequent to the commission of the offence shall apply if it is advantageous to the accused or convicted person.

Article 24

Prohibition of Double Jeopardy

No person shall be liable to be tried or punished again for an offence for which he has already been finally convicted or acquitted in accordance with the criminal law and procedure.

Article 25

Right to Honor and Reputation

- 1/ Everyone has the right to enjoy recognition everywhere as human being due to his creation as such.

- 2/ Everyone has the right to respect for his human dignity and reputation.
- 3/ Everyone has the right to free development of his personality in a manner compatible with the rights of other citizens.

Article 26

Right to Equality

All persons are equal before the law and are entitled, without any discrimination, to equal protection of the law. Accordingly, the law shall guarantee to all persons the right to equal and effective protection without discrimination on grounds of race, nation, nationality, color, sex, language, religion, political opinion, social origin, wealth, birth or other status.

Article 27

Right to Privacy

- 1/ Everyone has the right to privacy. This right shall include the right not to be subjected to searches of his home, person or property, including the seizure of any property under his personal possession.
- 2/ Everyone has the right to the inviolability of his notes and correspondence including postal letters, and communications made by means of telephone, telecommunications and electronic devices.

- 3/ Government officials shall respect and protect these rights. No restrictions may be placed on the enjoyment of such rights except in compelling circumstances and in accordance with specific laws whose purpose shall be the safeguarding of national security or public peace, the prevention of crimes or the protection of health, public morality or the rights and freedoms of others.

Article 28

Freedom of Religion, Conscience and Belief

- 1/ Everyone has the right to freedom of thought, conscience, and religion. This right shall include the freedom to hold or adopt a religion or belief of his choice, and the freedom, either individually or in community with others, and in public or private, to manifest his religion or belief in worship, observance, practice and teaching.
- 2/ Subject to the provisions of sub-Article 2 of Article 112, believers may establish institutions of religious education and administration in order to propagate and organize their religion.
- 3/ No one shall be subject to coercion or other means which would restrict or prevent his freedom to hold a belief of his choice.

- 4/ Parents and legal guardians have the right to bring up their children ensuring their religious and moral education in conformity with their own convictions.
- 5/ The right to express one's religion or belief may be subject only to such limitations as are prescribed by law and are necessary to protect public safety, peace, public health, education, public morality or the fundamental rights and freedoms of other citizens, and to ensure the independence of the state from religion.

Article 29

Crimes Against Humanity

Criminal liability of persons who commit “crimes against humanity”, so defined by international agreements ratified by Ethiopia and by other laws of Ethiopia, such as genocide, summary executions, forcible disappearances or torture, shall not be barred by statute of limitation. Such offences may not be commuted by amnesty or pardon of the legislature or any other state organ.

PART TWO
DEMOCRATIC RIGHTS

Article 30

Right of Thought, Opinion and Expression

- 1/ Everyone has the right to hold opinions without interference.
- 2/ Everyone has the right to freedom of expression without any interference. This right shall include freedom to seek, receive and impart information and ideas regardless of frontiers, either orally, in writing or in print, in the form of art, or through any media of his choice.
- 3/ Freedom of the press and other mass media as well as freedom of artistic creativity is guaranteed. Freedom of press shall specifically include the following elements:
 - (a) Prohibition of any form of censorship;
 - (b) Access to information of public interest.
- 4/ In the interest of the free flow of information, ideas and opinions which are essential to the functioning of a democratic order, the press shall, as an institution, enjoy legal protection in order to ensure its operational independence and its capacity to entertain diverse opinions.

- 5/ Any media financed by or under the control of the State shall operate in a manner ensuring its capacity to entertain diversity in the expression of opinion.
- 6/ These rights can be subjected to limitations only by laws which are guided by the principle that freedom of expression and information shall not be limited on account of the content or effect of the point or view expressed. Legal limitations may be imposed on these rights in order to protect the well-being of the youth, and the honor and reputation of individuals. Any propaganda for war as well as the public expression of opinion intended to injure human dignity shall be prohibited by law.
- 7/ Any citizen who violates any legal limitations on the exercise of these rights may be held liable under the law.

Article 31

Right of Assembly, Demonstration and Petition

- 1/ Everyone has the right to assemble and to demonstrate together with others peaceably and unarmed, and to petition. Appropriate regulations may be made in the interest of public convenience relating to the location of open-air meetings and the route of movement of demonstrators or, for the protection of democratic rights, public morality and peace during such a meeting or demonstration.

- 2/ This right does not exempt from liability under laws enacted to protect the well-being of the youth, or the honor and reputation of individuals, and laws prohibiting any propaganda for war and any public expression of opinions intended to injure human dignity.

Article 32

Freedom of Association

Every person has the right to freedom of association for any cause or purpose. Organizations formed, in violation of the relevant laws or to illegally subvert the constitutional order, or which promote such activities are prohibited.

Article 33

Freedom of Movement and Right to choose Residence

Without prejudice to the Federal Constitution, Article 32, any resident of the State or any person lawfully in the State has, within the territory of the Region, the right to liberty of movement and freedom to establish or choose his residence, right to work, right to possession of private property as well as to leave the region at any time he wishes to.

Article 34

Right to Work in Public Institutions and Government Office

- 1/ Any Ethiopian of other Regional States who speaks the working language of the Region has the right to be employed or assigned to serve in any public and

governmental activities of the State, like the indigenous people of the Regional State;

- 2/ Every person has the right to reside, to move freely from place to place, to acquire and possess property in the Region.

Article 35

Marital, Personal and Family Rights

- 1/ Men and women, without any distinction as to race, nation, nationality or religion, who have attained marriageable age as defined by law, have the right to marry and establish a family. They have equal rights while entering into, during marriage and at the time of divorce. Laws shall be enacted to ensure the protection of rights and interests of children at the time of divorce.
- 2/ Marriage shall only be concluded with the free and full consent of the intending spouses.
- 3/ The family is the natural and fundamental unit of society and is entitled to protection by the society and the State.
- 4/ In accordance with provisions to be specified by law, a law giving recognition to marriage concluded under systems of religious or customary laws may be enacted.

- 5/ This Constitution shall not preclude the adjudication of disputes relating to personal and family laws in accordance with religious or customary laws, with the consent of the parties to the dispute. Particulars shall be determined by law.

Article 36

Rights of Women

- 1/ Women shall, in the enjoyment of rights and protections provided for by this Constitution, have equal right with men.
- 2/ Women have equal rights with men in marriage as prescribed by this Constitution.
- 3/ Women, taking into account the historical legacy of inequality and discrimination they have suffered, are entitled to remedy this legacy, and in addition to affirmative measures. The purpose of such measures shall be to provide special attention to women so as to enable them to compete and participate on the basis of equality with men in political, social and economic life as well as in public and private institutions.
- 4/ The State shall enforce the right of women to eliminate the influences of harmful customs. Laws, customs and practices that oppress women or cause bodily or mental harm to women are prohibited.
- 5/ Women have equal rights with men in employment, promotion, pay, and transfer of pension entitlements.

- 6/ Women working in government offices and private organization shall have the right to:
- (b) Maternity leave with full-pay. The duration of maternity leave shall be determined by law taking into account the nature of the work, the health of the mother and the well-being of the child and the family.
 - (b) Maternity leave may, in accordance with the provisions of law, include prenatal leave with full pay.
- 7/ Women have the rights of access to family planning education, information and capacity in order to prevent themselves from harm arising from pregnancy and childbirth and in order to safeguard their health.
- 8/ Women shall have the right to acquire, administer, control, use, and transfer property. In particular, they have equal rights with men with respect to use, transfer, administration and control of land. They shall also enjoy equal treatment in the inheritance of property.
- 9/ Women shall have the right to full consultation in the formulation of regional development policies, the designing and execution of projects, and particularly in the case of projects that affect the interest of women.

Article 37
Rights of Children

1/ Every child has the right:

- (a) To life;
- (b) To a name and nationality;
- (c) To know and be cared for by his or her parents or legal guardians;
- (d) Not to be subjected to exploitative practices; neither to be required nor permitted to perform work which may be hazardous or harmful to his or her education, health or well-being.
- (e) To be free of corporal punishment or cruel and inhuman treatment in schools and other institutions responsible for the care of children.

2/ Public and private welfare institutions, courts of law, administrative authorities or legislative bodies in taking action against the children, shall give the primary consideration for the best interests of the child.

3/ Juvenile offenders admitted to corrective or rehabilitative institutions and juveniles who become wards of the State or who are placed in public or private orphanages, shall be kept separately from adults.

4/ Children born out of wedlock shall have equal rights as children born of wedlock.

5/ The State shall accord special protection to orphans, and shall encourage the establishment of institutions which ensure and promote their adoption and advance their welfare, and education.

Article 38

Right of Access to Justice

1. Any person has the right to bring a justiciable matter before, and to obtain a decision or judgment from, a court of law or another competent body with judicial power.
2. The decision or judgment referred to under sub-Article 1 of this Article may also be sought by:
 - (a) Any association representing the collective or individual interest of its members; or
 - (b) Any group or person who is a member of, or represents a group with similar interests.

Article 39
Rights of the Indigenous Nations Nationalities of
Benishangul Gumuz

In accordance with the provisions of the Constitution of Federal Democratic Republic of Ethiopia, the nations nationalities of the Benishangul Gumuz Regional State shall have unconditional right of self-determination, including the right to secession. Accordingly, the nation or nationality of the Regional State shall have the right to:

- 1/ Preserve its identity and have it respected, promote and preserve its heritage, artifact and history, as well as use and develop its own language and express and promote its culture;
- 2/ Administer its own affairs within its own defined territory and exercise self rule, effectively participate in the activities of the Federal Government with freedom, impartiality and appropriate and fair representation;
- 3/ Exercise its rights of self-administration and establish its own governmental organizations in the geographical settlement of the peoples, and get entitled to equitable representation in the administration of the Federal Government.
- 4/ Exercise its rights of self-determination including the rights to secession in accordance with Article 39 of the Constitution of the Federal Democratic Republic of

Ethiopia where it believes that the rights specified in sub-Articles 1 to 3 are suspended, denied and not fully implemented, and such violations could not have been rectified within the unity;

5/ The right of self-determination may be exercised:

- (a) When a demand for secession has been approved by a two-thirds majority vote of the members of Nations', Nationalities' and Peoples' Council;
- (b) When the Federal Government has organized a referendum within three years as of the receipt of the decision of the Council for secession;
- (c) When the demand for secession is supported by a majority vote during the referendum;
- (d) When the Federal Government transferred power to the Council of the Nation, Nationality or People who has voted to secede; and
- (e) When the division of assets is effected in accordance with the law.

7/ The Nation, Nationalities of the Region shall have the right to establish their own Region. Its implementation shall be in accordance with sub-Article 3(a-d) of Article 47 of the Constitution of the Federal Democratic Republic of Ethiopia.

- 8/ For the purpose of this Constitution, "Nation, Nationality or People" shall mean a group of people who have a large measure of common culture or similar custom, mutual intelligibility of language, belief in a common or related identities and who predominantly inhabit in a contiguous territory.

Article 40

The Right to Property

- 1/ The right of every resident of the State to own private property shall be respected. Unless provided otherwise by law on account of public interest this right shall include the right to acquire, to use, and without prejudice to the rights of others, dispose of, or transfer through sale, bequest or any other means.
- 2/ "Private property," for the purpose of this Article, shall mean any tangible or intangible property which has value and is produced by the labor, creativity, enterprise or capital of an individual citizen, associations which enjoy juridical personality under the law, or in appropriate circumstances, by communities specifically empowered by law to own property in common.
- 3/ The right to ownership of urban or rural land and natural resources is exclusively vested in the State and in the people. Land is a common property of the people of the Regional State and shall not be subject to sale or to other means of exchange.

- 4/ The peasants of the State have the right to acquire land without payment and not to be displaced from it. The details of its implementation shall be prescribed by law.
- 5/ The peasants and semi-peasants of the State have the right to acquire and use land for grazing and cultivation without payment and the right not to be displaced from their own lands. Its implementation shall be determined by law.
- 6/ Without prejudice to the exclusive right of people to ownership of land, the State shall ensure the right of private investor to use land on the basis of payment arrangements to be determined by law. Particulars shall be determined by law.
- 7/ Any Ethiopian residing in and out of the Region shall have the right to the immovable property he builds on the land or to the permanent improvements he brings about on the land by his labor or capital. This right shall include the right to sell, exchange, or bequeath it, and where the right of land use expires to remove his property, to transfer his title or to claim compensation for it. Particulars shall be determined by law.
- 8/ Notwithstanding the right of private ownership of property, the Regional State may expropriate, on account of public interest, private property subject to advance payment of compensation commensurate to the value of the expropriated property.

Article 41

Economic, Social and Cultural Rights

- 1/ Any resident of the State and any Ethiopian who wishes to live in the state has the right to engage freely in any economic activity and to pursue occupation of his choice for his livelihood.
- 2/ Any resident of the State has the right to choose his means of livelihood, occupation and profession.
- 3/ All residents of the State have the right to equal access to government-funded social services.
- 4/ The Regional State has the obligation to allocate an ever-increasing resource for public health, education and other social services.
- 5/ The Regional State shall, within the available means, allocate resources to provide rehabilitation and assistance to the physically and mentally disabled, the aged, and to children who are left without parents or guardian.
- 6/ The Regional State shall pursue policies that aim at creating job opportunities for the unemployed and the poor, and shall undertake programmes and projects that create job opportunities.
- 7/ The Regional State shall take the necessary measures to widen opportunities for the residents of the State to find gainful employment.

- 8/ Peasants and semi-peasants have the right to receive fair prices for their products, that would lead to the improvement of their conditions of life and to enable them to obtain an equitable share of the national wealth commensurate with their contribution. The Regional State shall be guided by this objective when formulating economic and social development policies.
- 9/ The State has responsibility to protect and preserve cultural and historical legacies, and to contribute to the promotion of arts and sports.

Article 42
Rights of Labor

- 1/ Factory and service workers, farm labourers, farmers and other rural workers and government employees below a certain level of responsibility and whose working conditions so permit:
- (a) Have the right to form associations so as to improve their employment and economic wellbeing. This right includes the right to form trade union and other associations, and to bargain with employers or other organizations that affect their interests.
 - (b) The categories of workers mentioned in paragraph (1) of this sub-Article have the right to express grievances, including the right to strike.

- (c) Government employees who enjoy the rights provided under paragraphs (a) and (b) of this sub- Article shall be determined by law.
 - (d) Women workers have the right to equal pay for equal work.
- 2/ Workers have the right to reasonable limitation of working hours, to rest, to periodic leave with pay, to remuneration for public holidays, as well as to a healthy and safe working environment.
 - 3/ Without prejudice to the rights recognized under sub-Article 1 of this Article, laws enacted for the implementation of such rights shall establish procedures for the formation of trade unions and for the regulation of the collective bargaining process.

Article 43

The Right to Development

- 1/ The residents of the Regional State have the right to improved living standards and to sustainable development.
- 2/ The residents of the Regional State have the right to participate in national development activities, particularly, to be consulted on the policies and projects affecting the community in which they are members.
- 3/ The main objectives of development activities of the Regional State shall be to enhance the capacity of the residents of the Region for development and to meet their basic needs.

Article 44

Environmental Rights

- 1/ The inhabitants of the Regional State have the right to a clean and healthy environment.
- 2/ All persons who have been displaced or whose livelihoods have been adversely affected as a result of the Regional state programs have the right to commensurate monetary or alternative means of compensation including relocation with the assistance of the State.

CHAPTER FOUR

STRUCTURE AND DIVISION OF POWER OF THE REGIONAL STATE

Article 45

Administrative Hierarchies of the Regional State

- 1/ The Regional State is organized in Region, Council of Nationalities, and Administrative hierarchies. However, the State Council may organize other administrative hierarchies and determine their powers by law.
- 2/ The administrative hierarchies to be established in the Regional State shall be delimited on the basis of the settlement pattern, language, identity and consent of the Nations, Nationalities or Peoples in the Region.

- 3/ Representation of other people of the Region shall be given special consideration. Particulars shall be determined by law.
- 4/ Cities of the Regional State shall have their own administration which promotes their development. Particulars shall be determined by law.

Article 46

Structure of the Organs of the Regional State

- 1/ The State Council is the legislative body and the highest authority of the Regional State and is accountable to the people whom it represents.
- 2/ The Executive Council is the highest executive organ of the Regional State and is accountable to the Regional State Council.
- 3/ The judicial power of the Regional State shall be exclusively vested in the Region's Courts.

Article 47

Powers and Functions of the State

1. All powers and functions, which are not given expressly to the Federal Government and the Federal and Regional Government jointly in accordance with the Constitution of the Federal Democratic Republic of Ethiopia, shall be vested in the Regional State.

2. Without prejudice to sub-Article 1 of this Article, the Regional State shall:

- 2.1 Formulate and execute the Region's economic and social development policy, strategy and plan;
- 2.2 Enact and implement the Region's Constitution and other regional laws;
- 2.3 Administer land and other natural resources in accordance with the laws enacted by the Federal Government;
- 2.4 Establish a Regional State administration that best advances self-rule; build a democratic order where the supremacy of the law prevails, protect and defend the Constitution of the Federal Democratic Republic of Ethiopia and this Constitution;
- 2.5 Enact laws concerning the administration of the Region's civil servants and their working conditions, and implement the same; in so doing it shall take into account the nationally recognized standards of qualification training and experience;
- 2.6 Establish and administer the State police force, maintain peace and security within the State;
- 2.7 Grant, without prejudice to sub-Article (1) of Article 28 of the Constitution of Federal Democratic Republic of Ethiopia and Article 29 of this Constitution, amnesty based on law;
- 2.8 Levy and collect taxes and other duties on revenue sources reserved to the Regional State and issue and administer the Regional State budget;

- 2.9 Levy and collect income taxes from the civil servants and employees of enterprises within the Region;
- 2.10 Determine and collect payment from the use of land;
- 2.11 Levy and collect agricultural income tax;
- 2.12 Levy and collect taxes on income of houses and other properties owned by private persons, fix and collect rents on the income of houses and properties owned by the Regional State;
- 2.13 Levy and collect profit, personal income, sales and excise taxes on enterprises owned by the Regional State;
- 2.14 Share, in accordance with the law:
 - (a) profit tax, personal income tax, sales and excise taxes on enterprise they jointly establish;
 - (b) taxes on the profits of companies and on dividends of share holders;
 - (c) taxes on incomes derived from large-scale mining and all petroleum and gas operations, and royalties on such operations;

Jointly with the Federal Government;

- 2.15 Determine and collect fees on licenses and services approved by the executive organs;
- 2.16 Fix and collect royalty for use of forest resources;

- 2.17 Declare and implement state of emergency when any natural disaster or an epidemic disease, which endangers the public health, occur.

CHAPTER FIVE

THE REGIONAL STATE COUNCIL

Article 48

Members of the Regional State Council

- 1/ Members of the Regional State Council shall be elected by the people for a term of five years by free, direct and fair elections conducted through secret ballot.
- 2/ Members of the Regional State Council shall be elected from among candidates in each electoral district by a plurality of the votes cast. The number of members of the Regional State Council shall be on the basis of the size of the population. The representation of Mao and Como nationalities shall be given special consideration. The number of members of the Regional State Council shall not exceed one hundred. People who are believed to be entitled to special representation shall be represented in the Council through election. Particulars shall be determined by law.
- 3/ The members of the Regional State Council shall be the representatives of the People of the Regional State as a whole, and they are accountable to:

- (a) The Constitution;
 - (b) The electorate;
 - (c) Their own conscience.
- 4/ No member of the Regional State Council may be prosecuted on account of any vote he casts or opinion he expresses in the Council, nor shall any administrative action be taken against any member on such grounds.
- 5/ No member of the Council may be arrested or prosecuted without the permission of the Council except in the case of flagrant delicto for a serious offence.
- 6/ A member of the Council may, in accordance with law, lose his mandate of representation upon loss of confidence by the electorate.
- 7/ The provision of sub Article 6 of this Article shall, as the case may be, apply to Council at all levels.

Article 49

Powers and Functions of the Regional State Council

- 1/ According to this Constitution, the Regional State Council is the legislative body of the State.
- 2/ Without prejudice to the provision of the Constitution of the Federal Democratic Republic of Ethiopia, the highest political power regarding the internal affairs of the Region is vested in the Regional State Council.

3/ Without prejudice to the provisions of sub-Article 1 and 2 of this Article the Regional State Council shall have the following powers and functions:

- 3.1 Based on this Constitution, enact various laws that are consistent with the Federal Constitution and other laws;
- 3.2 Establish additional administrative hierarchies or self-administering areas by taking into account the size of the population, and the Region and its socio-economic activities;
- 3.3 Without prejudice to the powers vested to the Federal Government, ratify agreements concluded between neighboring Regional States;
- 3.4 Elect its own Speaker and Deputy Speakers of the Council; establish standing and ad-hoc committees necessary for its activities;
- 3.5 Elect Chief Executive from among members of the Regional State council; approve the appointment of the members of the Executive Council upon recommendation by Chief Executive;
- 3.6 Appoint the President and Vice-President of the Regional State Supreme court, the Auditor General and Deputy-Auditor General upon the recommendation of the Chief Executive;

- 3.7 Establish the Supreme Court, the High Courts and First Instance Courts of the Regional State and appoint judges;
- 3.8 Establish the Regional Audit and other Control office;
- 3.9 Issue necessary directives for the maintenance of peace and security of the Regional State; establish security and police forces;
- 3.10 Approve social and economic programmes of the Regional State;
- 3.11 Enact laws regarding the sources of income of the Regional State, determine the division of the Regional State's Revenues among Councils of Nationalities, administrative hierarchies and Weredas by the formula and approve same;
- 3.12 Establish institutions necessary for the promotion of social services, economic development and building democratic system;
- 3.13 Levy tax and duties on sources of revenue reserved to the Regional State;
- 3.14 Enact laws regarding the Regional State civil servants and their working conditions of services;
- 3.15 Issue decree of state of emergency in accordance with the power given under sub-Article 2 (2.17) of Article 47 of this Constitution;

- 3.16 Issue detail regulations which enable to implement the Constitutions and laws of the country and the Regional State in the Region;
- 3.17 Call for questioning the Chief Executive and other officials of the Regional State and investigate the Executive's conduct and of the discharge of its responsibilities;

Article 50

Political Power

- 1/ A political party, or political parties with majority seats in the Regional State Council shall form the Executive Council and lead same.
- 2/ The Provision of sub-Article 1 of this Article shall, as the case may be, applicable to Council of Nationalities, Wereda and Kebele Administrative Councils.

Article 51

Office of the Regional State Council

- 1/ The Regional State Council shall have its own Office.
- 2/ The powers and duties of the Office shall be determined by law.

Article 52

Designation and Term of Office of the Speaker of the Council

- 1/ The speaker of the Council shall be elected by from among the members of the Council in accordance with sub-Article 3(3.4) of Article 49 of this Constitution and shall be accountable to the Regional State Council.
- 2/ The term of office of the Speaker shall be for the duration of the mandate of the Regional State Council.

Article 53

Powers and Functions of the Speaker

The speaker of the Council shall, in accordance with this Constitution, have the following powers and functions:

- 1/ Call and preside over ordinary and extra-ordinary meetings of the State Council;
- 2/ Represent the Council before third parties;
- 3/ Organize the office of the Council and direct the activities of the administration;
- 4/ Enforce all disciplinary measures taken by the Regional State Council against its members;

- 5/ Coordinate the standing and ad- hoc committees of the Council.

Article 54

Powers and Functions of Deputy Speaker

The Deputy Speaker shall be accountable to the Speaker and Regional State Council and shall:

- 1/ Perform such other functions as may be specifically entrusted to him by the Speaker;
- 2/ Acts on behalf of the Speaker in his absence or when he is unable to exercise his functions.

Article 55

Sessions and Term of Office of the Regional State Council

- 1/ The Council shall have a regular session at least twice a year.
- 2/ The presence of more than half of the members of the Regional State Council constitutes a quorum. Decision of the Council shall be passed by majority vote of the members present at the meeting.
- 3/ The members of the State Council shall be elected for a term of five years. Elections for a new State Council shall be concluded one month prior to the expiry of the

Council's term. The new Council shall convene within one month of the conclusion of the elections.

- 4/ The Speaker of the Council may call an extraordinary meeting of the Council when the Council is not in session. He shall have an obligation to call an extraordinary meeting of the Council at the request of the Chief Executive, or of more than one-third of the members of the Council.
- 5/ Meetings of the Council shall be public. The Council may, however, hold a closed meeting at the request of the members of the Council or Executive Council and when such request is supported by a decision of more than half of the members of the Council.

Article 56

Decisions and Rules of Procedures of the Council

- 1/ Unless otherwise provided for in this Constitution, all decisions of the Regional State Council shall be passed by majority vote of the members.
- 2/ The Council may detail regulations regarding the organization of its work and of law making.

CHAPTER SIX

EXECUTIVE COUNCIL

Article 57

Powers of the Executive

- 1/ The highest executive powers of the Benishangul Gumuz Regional State are vested in the Chief Executive and the Executive Council.
- 2/ The Chief Executive and the Executive Council are accountable to the Regional State Council.
- 3/ In the exercise of State functions, members of the Executive Council shall bear collective responsibility for all decisions they make as a body.
- 4/ "Executive" means the Executive of the Regional State.

Article 58

Executive Council

- 1/ The Executive Council is composed of the Chief Executive, Deputy Chief Executive, Heads of Executive Offices and other members determined by law.
- 2/ The Chief Executive shall be the Chairman of the Executive Council.

- 3/ The Executive Council is accountable to the Chief Executive.
- 4/ The Executive Council is accountable to the State Council for its decision.

Article 59

Powers and Functions of the Executive Council

Without prejudice to the provisions of the Federal Constitution, the Executive Council shall have the following powers and functions:

- 1/ Ensure the implementation of laws enacted and decisions passed by the Regional State Council and Federal Government and issue regulations and directives;
- 2/ Determine the organizational structure of the Executive Bodies of the Regional State and other organs of the State and supervise and direct their activities;
- 3/ Decide, without prejudice, to the powers given to the State Council under sub-Article 1 of Article 45 and sub-Article 3 (3.2) of Article 49 of this Constitution, on petitions submitted to it from Weredas and Kebeles of the Region, with respect to redefinition of their boundaries;
- 4/ Draw-up the annual budget, and submit to the Regional State council, implement same upon approval.

- 5/ Formulate economic and social policies and strategies of the Regional State, submit draft laws to the Regional State Council and implement same upon approval.
- 6/ Ensure the observance of law and order in the Region and grant pardon in accordance with the law;
- 7/ Issue regulations pursuant to powers vested in it by the Regional State Council;
- 8/ Appoint heads submitted to it in accordance with sub-Article 3(h) of Article 61;
- 9/ Without prejudice to the power given to the Regional State Council under sub-Article 3 (3.15) of Article 49 of this Constitution, declare and implement a state of emergency when an epidemic or national disaster occurs in the Region;
- 10/ Ensure that the legacies and natural resources of the Region are preserved and protected;
- 11/ Perform such other duties as may be entrusted to it by the State Council.

Article 60

Appointment of the Chief Executive and Term of Office

- 1/ The Chief Executive shall be elected upon recommendation by the political party or political parties with majority seats in the Regional State Council.
- 2/ Unless otherwise provided for in this Constitution, the term of office of the Chief Executive is for the duration of the mandate of the Regional State Council.

Article 61

Powers and Functions of the Chief Executive

- 1/ The Chief Executive shall be the managing Head and Chairman of the Executive Council, and President of the Regional State.
- 2/ The Chief Executive shall be accountable to the Regional State Council.
- 3/ Without prejudice to the provision of sub-Article 1 of this Article, the Chief Executive shall:
 - (a) Direct, coordinate and represent the Executive Council;
 - (b) Sign and convey Proclamations and Regulations adopted by the legislative and Executive bodies of the

Regional State within fifteen days, to be published in the Regional State's Negarit Gazeta; If not signed within fifteen days the law shall take effect without his signature;

- (c) Follow up the implementation of policies, regulations, directives and decisions adopted by the Executive Council;
- (d) Grant pardon in accordance with the law;
- (e) Select nominees for posts of the President and Vice-President of the Supreme Court, and Auditor General and Deputy-Auditor General of the Regional State and submit to the State Council for approval;
- (f) Submit to the Regional State Council for approval the appointment of Heads of the Regional Offices, including Deputy Chief Executive, who shall be members of the Regional State Council, the Deputy Chief Executive shall be a member of the Regional State Council;
- (g) Without prejudice to the provisions of sub-Article 3(e) and (f) of this Article, assign provisionally the officials below the Deputy Chief Executive mentioned above, when the state council is not in session, the assignment of President and Vice President of Supreme Court shall be from among judges of Supreme Court;

- (h) Select nominees and submit for the appointment of Heads and Deputy Heads of Bureau and Commissioners and others outside the members of the Executive Council;
- (i) Exercise overall direction and supervision over the Regional State's security police forces established to maintain law and order in the Region;
- (j) Direct, coordinate and supervise subordinate administrative units;
- (k) Call, without prejudice to the provision of sub-Article (2) of Article 59 of this Constitution, the first session of the Regional State Council;
- (l) Submit a report to the Regional State Council;
- (m) Perform such other functions as may be entrusted to him by the Council.

Article 62

Powers and Functions of the Deputy Chief Executive

- 1/ The Deputy Chief Executive shall be appointed by the State Council upon the recommendation of the Chief Executive and shall have the following powers and functions:
 - (a) Perform such other functions as may be specifically entrusted to him by the Chief Executive;

- (b) Act on behalf of the Chief Executive in his absence or is unable to exercise his functions.

- 2/ The Deputy Chief Executive shall be accountable to the Chief Executive and the Executive Council.

Article 63

Office of Chief Executive

- 1/ The Chief Executive shall, in order to carry out his responsibilities entrusted to him by this Constitution, have his own office.
- 2/ The office shall also serve as office of the Executive Council. Particulars shall be determined by law.

Article 64

Establishment of Higher Economic, Social and

Administrative Institutions

- 1/ There shall be established various Bureaux, Commissions and other higher institutions as may be necessary in order to carry out the day to day economic, social and administrative activities.

- 2/ The Bureaux, Commissions and other higher institutions shall be accountable to the Chief Executive and the Executive Council.
- 3/ Without prejudice to sub-Article 2 of this Article Regional Bureaux, Commissions and other higher institutions shall be accountable to the appropriate Superior Executive Offices with which they have common objective and missions. Particulars shall be determined by law.

CHAPTER SEVEN

STRUCTURE AND POWERS OF THE COURTS

Article 65

Independence of the Judiciary

1. An independent judiciary of the Regional State is established by this Constitution.
2. Special or *ad-hoc courts* which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures shall not be established.

Article 66

Customary and Religious Judicial Organs

Without prejudice to the provision of sub-Article 5 of Article 35 of this Constitution, religious and customary Courts that had state recognition and functioned prior to the adoption of the State Constitution shall be organized on the basis of recognition accorded to them by this Constitution.

Article 67

Judicial Power

- 1/ Judicial Power in the State is exclusively vested in the courts.
- 2/ Courts of any level shall be free from any interference or influence of any governmental body, public official, or any other source.
- 3/ Judges shall exercise their functions in full independence. They shall be directed solely by the law.
- 4/ No judge shall be removed from his duties before he reaches the legally determined retirement age except under the following conditions:

- (a) When the Judicial Administration Council decides to remove him for violation of disciplinary rules or on grounds gross incompetence or inefficiency; or
 - (b) When the Judicial Administration Council decides that a judge can no longer discharge his duty on account of illness; and
 - (c) When the State Council approves by a majority vote the decisions of the Judicial Administration Council.
- 5/ The implementation of sub-Article 4 of this Article shall be determined by law.
- 6/ The retirement age of a judge may not be extended.

Article 68

Jurisdiction and Structure of Courts

- 1/ The judicial organ of the State shall comprise the Regional State Supreme Court, High Courts and First-Instance Courts. The Wereda Courts shall be the lowest and first instance courts of the Region.
- 2/ The Supreme Court shall:
- (a) Be the highest and final judicial power over State matters;

- (b) Exercise the jurisdiction of the Federal High court over federal matters;
 - (c) Exercise power of cassation over any final court decision on State matters which contains a basic error of law. Particulars shall be determined by law.
- 3/ State High Courts shall in addition to Regional State jurisdiction exercise the jurisdiction of the Federal First-Instance Courts.
 - 4/ Decisions rendered by a State High Court exercising the jurisdiction of the Federal First-Instance Court are appealable to the Regional State Supreme Court.
 - 5/ Decisions rendered by a State Supreme Court on Federal matters are appealable to the Federal Supreme Court.
 - 6/ The State Supreme Court shall draw up and submit directly to the State Council for approval of the administrative budget of the Regional State courts. It shall administer the budget upon approval.
 - 7/ The State Supreme Court shall request the Federal Supreme Court to provide a compensatory budget for those State Courts concurrently exercise the jurisdiction of the Federal Courts.

Article 69

Appointment of Judges

- 1/ The President and Vice-President of the Regional State Supreme Court shall, upon recommendation by the Chief Executive, be appointed by the Regional State Council.
- 2/ The Regional State Supreme court, High Court and Wereda Court judges shall, upon recommendation by the State Judicial Administration Council, be appointed by the Regional State Council. The judges of the Regional Supreme Court and High Courts shall be appointed upon the recommendation of the Judicial Administration Council.
- 3/ The State Judicial Administration Council, before submitting nominees of the State's Supreme and High Court judges to the State Council, has the responsibility to solicit and obtain the views of the Federal Judicial Administration Council on the nominees and to forward those views along with its recommendations. If the Federal Judicial Administration Council does not submit its view within three months, the State Council may grant the appointments.

Article 70

Establishment of the State Judicial

Administration Council

1. There shall be established a Regional State's judicial Administration Council with the majority of judges.

2. The President of the State Supreme Court shall be the chairman of the Council.
3. The composition of members of the Council and their powers and functions shall be determined by law.

Article 71

Constitutional Interpretation Commission

- 1/ It is hereby established by this constitution a Constitutional Interpretation Commission composed of four representatives drawn from each indigenous nationality and whose total number of members is twenty, which hears and decides on matters of constitutional issues or questions of interpretation. The members shall be elected by the Councils of Nationalities.
- 2/ The Commission shall, deliberate and decide on matters of constitutional issue submitted to it from the Regional Council of Constitutional Inquiry within 60 days. Particulars shall be determined by law.
- 3/ The term of office of Commission established in accordance with sub-Article 1 of this Article shall be for the duration of the mandate of the Regional State Council which they represent and shall meet as may be necessary to carry out its Constitutional responsibilities.
- 4/ The Commission shall elect its own Chairperson and Secretary from among its members, and shall receive secretarial services and financial support from the Regional State Council to carry out its functions.

Article 72

Council of Constitutional Inquiry

- 1/ The Council of Constitutional Inquiry is established by this Constitution.
- 2/ The Council of Constitutional Inquiry shall have eleven members comprising:
 - (a) The President of the State Supreme Court, who shall serve as its Chairperson;
 - (b) The Vice-President of the State Supreme Court who shall serve as its Vice-Chairperson;
 - (c) Six legal experts, appointed by the State Council on recommendations by the Chief Executive, who shall have proven professional competence and high moral standing;
 - (d) Three representatives elected from among members of the State Council upon the recommendation of the Speaker.

Article 73

Powers and functions of the Council of Constitutional Inquiry

- 1/ The Regional Council of Constitutional Inquiry shall have powers to investigate constitutional disputes. Should the Council, upon consideration of the matter, find it necessary to interpret the Constitution, it shall submit its recommendations thereon to the Constitutional Interpretation Commission.
- 2/ Where the laws, regulations and directives issued by the State organs are contested as being unconstitutional and are submitted to the Council of Constitutional Inquiry by a court or a party to a dispute, the Council, after examining the claim, shall submit its findings to the Commission for a final decision.
- 3/ When issues of constitutional interpretation arise in courts, the Council shall:
 - (a) Remand the case to the concerned court if it finds no reason for constitutional interpretation. Any interested party who is dissatisfied with the decision of the Council may appeal to the Commission;
 - (b) Submit its recommendation to the Commission for a final decision if it believes there is a need for constitutional interpretation.

CHAPTER EIGHT

Powers and Organization of Administration of Nationalities

Article 74

Organization of Administration of Nationalities

- 1/ The Administration of Nationalities is an administrative hierarchy coming after the Regional State Council.
- 2/ Each Administration of Nationalities shall have the following organs:
 - (a) Council of Nationalities;
 - (b) Nationalities Administration Council;
 - (c) Nationalities Administration Judicial Organ.

Article 75

Powers and Duties of the Council of Nationalities

- 1/ Each nationality Council shall be established comprising members elected from among members of the Wereda Council under special condition including members of the Regional Council. Particulars shall be determined by law.
- 2/ Without prejudice to the powers and functions given to the House of Peoples' Representative and House of Federation under the Constitution of the Federal Democratic Republic

of Ethiopia and, the Regional Council under this Constitution, the Council of Nationalities shall be the supreme political power of their nationalities.

3/ Without prejudice to the generality stated under sub-Article 2 of this Article, each Council of Nationalities, shall be accountable to the Regional Council, and shall have the following powers and functions;

- (a) Determine its working language;
- (b) Protect the rights of Nationality to speak and write, to develop, preserve, express, promote and expand its language as well as to preserve its historical heritage;
- (c) Issue and enforce, without prejudice to the legislative power given to the Regional Council under this Constitution, implementation directives consistent with Regional laws, regulations and directives in its jurisdiction;
- (d) Evaluate and approve its plan and budget based on the Regional plan and budget approved by the Regional Council;
- (e) Elect its Speaker and Deputy Speaker and Chief Administrator;
- (f) Evaluate and approve the appointment of Deputy chief Administration of the Administrator of Nationalities and other members of the Council of Nationalities upon the recommendation of the Chief Administrator;
- (g) Submit its recommendation to the Regional Council on the appointment of judges of the High

- Court and First Instance Court of the Administration of Nationalities;
- (h) Call for questioning the Officials of the Nationality Administration including the Chief Administrator and evaluate their performance.

Article 76

Leadership of the Council of Nationalities

- 1/ The Council of Nationalities shall have its own office and be led by its own Speaker and Deputy Speaker elected from among members of the Council. Particulars shall be determined by law.
- 2/ The powers and duties of the Speaker and Deputy Speaker of the Regional Council stipulated in this Constitution shall, as the case may be, be applicable to the Speaker and Deputy Speaker.
- 3/ The Council shall organize itself in various sub-committees as may be necessary for discharging its responsibilities.

Article 77

Term of Office and Meeting of the Council of Nationalities

- 1/ The term of office of the Council of Nationalities shall be five years. New election shall be conducted one month before the expiry of the term of office of the council. The new Council shall assume office within one month of the completion of the term of office the outgoing council.

- 2/ The Council of Nationalities shall be convened at least thrice a year.
- 3/ There shall be quorum when more than half of the members of the Council are present at the meeting. The decision of the Council shall be passed by the majority of the members present at the meeting.
- 4/ The meeting of the Council of Nationalities shall be conducted in public. Where the Council has no regular meeting, the Speaker may call on extra-ordinary meeting. The Speaker of the Council shall have an obligation to call extra-ordinary meeting at the request of the Chief Administrator of the Administration of Nationalities or one third of the members of the Council.

Article 78

Council of Administration of Nationalities

- 1/ The Council of Administration of Nationalities shall be the highest executive organ of the Administration of Nationalities and is accountable to the concerned Chief Administration and Council of Nationalities.
- 2/ Without prejudice to sub-Article 1 of this Article, the Council of the Administration of Nationalities shall also be accountable to the Regional Executive Council and Chief Executive.
- 3/ The Council of administration of Nationalities shall be composed of the Chief Administrator, Deputy Chief

Administrator and Heads of Executive Departments in the Administration.

Article 79

**Powers and Functions of the Council of
Administration of Nationalities**

- 1/ The Council of Administration of Nationalities shall have the following powers and functions:
- (a) Ensure the implementation of laws enacted, and decisions made by the Regional State Council and Organs of the Federal Government in the Administration;
 - (b) Determine the organization of the departments and other executive organs of the members of the Council of the Administration and follow up and direct their activities;
 - (c) Draw up the annual draft budget and submit it to the Council of Nationalities and implement same upon approval;
 - (d) Formulate in detail the economic and social policies of the Administration and implement same upon approval;
 - (e) Ensure that law and order are observed and peace and stability are maintained within the administration;
 - (f) Perform such other functions as may be entrusted to it by the Council of Nationalities and the Regional Executive Council.

- 2/ In exercising state functions members of the Council of Administration Nationalities shall bear collective responsibility for the decision they make and the responsibilities they discharge.

Article 80

Election and Term of Office of the Chief Administrator of the Administration of Nationalities

- 1/ The Chief Administrator of the Administration of Nationalities shall be elected from among the members of the Council of Nationalities upon the recommendation of the political party or parties with majority seats in the Council of Nationalities.
- 2/ Unless otherwise provided for in this Constitution, the term of office of the Chief Administrator is for the duration of the mandate of the Council of Nationalities.

Article 81

Powers and Function of the Chief Administrator

- 1/ The Chief Administrator of the Administration of Nationalities shall be the Executive Officer, Chairman and representative of the Council of Administration.
- 2/ The Chief Administrator shall be accountable to the Council of Nationalities and Chief Executive of the Regional State.
- 3/ The powers and functions of the Chief Executive stipulated in this Constitution shall, as the case may be, be applicable to the Chief Administrator.

Article 82

Powers and Functions of the Deputy Chief Administrator

- 1/ The Deputy Chief Administrator of the Administration of Nationalities shall be appointed upon the recommendation of the Chief Administrator and shall have the following powers and functions:
 - (a) Perform such other functions as may be specifically entrusted to him by the Chief Administrator and Council of Administration of Nationalities;
 - (b) Act on behalf of the Chief Administrator in his absence or when he is unable to execute his powers and functions.
- 2/ The Deputy Chief Administrator shall be accountable to the Chief Administrator and the Council of Administration of Nationalities.

Article 83

OFFICE OF THE CHIEF ADMINISTRATOR

- 1/ The Chief Administrator of Administration of Nationalities shall have its own Office.
- 2/ The Office of the Chief Administrator may also serve as the Office of the Council of Administration of Nationalities. Particulars shall be determined by law.

CHAPTER NINE

STRUCTURE AND POWER OF THE WEREDA ADMINISTRATION

Article 84 **Structure**

The Wereda Administration shall have the following major organs:

- 1/ A Wereda Council established by representatives drawn from Kebeles organized under it;
- 2/ The Wereda Administrative Council established by the Chief Administrator of the Wereda who shall be elected from among the members of the Wereda Council; and
- 3/ A First Instance Court established in accordance with this Constitution.

Article 85 **Power and Function of the Wereda Administration**

- 1/ The Woreda Administration shall have all powers necessary to draw up and determine plans of economic development and social services and implement policies, laws, regulations and directives issued by the Regional State within its own administration.

- 2/ With out prejudice to the rights and powers of each Wereda to self-administration, to develop its Wereda and determine its own internal affairs it shall be a subordinate to the Regional Executive.

Article 86

Election and Accountability of Members of the Wereda Council

- 1/ Members of the Wereda Council shall be directly elected by the people residing in the Kebeles within the Wereda.
- 2/ The members of the Council shall be accountable to the people who elected them.

Article 87

Powers and Functions of the Wereda Council

- 1/ The Wereda Council is the highest authority of the Wereda and shall be accountable to the Council of Nationalities or the State Council as the case may be.
- 2/ Without prejudice to the generality stated under sub-Article 1 of this Article, the Wereda Council shall have the following powers and functions:
- (a) Approve economic development, social services and administrative plans, programmes and budget of the Wereda;
 - (b) Follow up the timely undertaking of the basic agricultural development activities in the Wereda, and

to ensure that special attention given to the accomplishment of the task with regard to the development, protection and preservation of natural resources;

- (c) Create favorable condition for the mobilization of the residents for development activities;
- (d) Elect the Speaker, Deputy Speaker and Chief Administrator as well as approve the appointment of Deputy Chief Administrator and members of Wereda Administrative Council upon recommendation by the Chief Administrator;
- (e) Issue directive regarding its own internal rules of procedure;
- (f) Ensure the timely collection of land use payment, agricultural income tax, and other incomes; particulars shall be determined by law;
- (g) Inform about income resources of the Wereda other than those allocated by the Regional State;
- (h) Without prejudice to the Federal and Regional Constitutions and other laws, issue detailed directives to ensure the peace and security of the Wereda;
- (i) Call for questioning the Chief Administrator including other officials of the Wereda and evaluate the performance of the executive organ.

Article 88
Leadership of the Council and the Speaker

- 1/ The Wereda Council shall have its own office which shall be led by the Speaker and Deputy Speaker who shall be elected on the recommendation of the political party or parties with majority seats in the Council.
- 2/ The Speaker shall be accountable to the Wereda Council and shall have the responsibility to call and chair the meeting of the Council in accordance with the prescribed schedule.
- 3/ With respect to other detailed powers and functions of the speaker, the provision of this Constitution dealing with the speaker of the Regional State Council shall, as the case may be, be applicable.

Article 89
Deputy Speaker of the Wereda

The Deputy Speaker shall be accountable to the Speaker and the Wereda Council and shall:

- 1/ Perform such other functions as may be specifically entrusted to him by the Speaker.
- 2/ Act on behalf of the Speaker in his absence or when he is unable to carry out his functions.

Article 90
Meetings and Term of Office

- 1/ The Wereda Council shall hold its session every three month.
- 2/ The presence of more than one half of the members of the Council at a meeting shall constitute a quorum. The decision of the Council shall be passed by a majority of members present at the meeting.
- 3/ The term of the Council shall be five years. Election for a new Council shall be concluded one month prior to the expiry of the Council's term. The new Council shall convene within one month of the conclusion of the election.
- 4/ Meetings of the council shall be public. The Speaker may call an extraordinary meeting when the Council is not in session. Where the Chief Administrator or more than one half of the members of the Council so request, the Speaker shall have an obligation to call an extra-ordinary meeting.

Article 91
Wereda Administrative Council

- 1/ The Wereda Administrative Council is the highest executive organ of the Wereda and is accountable to the Chief Administrator and Wereda Council.
- 2/ The Administrative Council shall comprise the Chief and Deputy Chief Administrators as well as heads of line sector

offices and shall, without including those in the Administration of Nationalities, be accountable to the Regional Executive Council in addition to the Wereda Council.

Article 92

Powers and Functions of Wereda Administrative Council

1/ The Wereda Administrative Council shall have the following powers and functions:

- (a) Implement policies, laws, regulations, directives, plans and programmes issued by the Federal Government and the Regional State;
- (b) Coordinate the executive organs of the Wereda, follow up and direct their activities;
- (c) Collect land use payment, agricultural income tax and other incomes in accordance with the law; conduct study regarding other sources of income and submit to the Wereda Council for approval
- (d) Draw up the Woreda's annual budget, submit it to the Wereda Council and implement it upon approval;
- (e) Maintain the peace and security of the Wereda , direct the police and security forces of the Wereda, and coordinate and supervise their activities;

- (f) Draw up socio-economic and administrative plans and submit it to Wereda Council for approval and implement same upon approval;
- (g) Mobilize the people for development activities to accelerate rural development, as well as preserve, protect and develop natural resources;
- (h) Follow up closely to ensure that all antiquities found in the Wereda are given the necessary protection.
- (i) Perform such other duties as may be assigned to it by the Wereda Council and the Regional State Executive Council.

2/ The members of Wereda Administrative Council are collectively responsible in performing their state functions.

Article 93

Appointment and Term of Office of Wereda Chief-Administrator

1/ The Chief Administrator shall be elected from among members of the Council upon recommendation by a political party or political parties with majority seats in the council.

- 2/ Unless otherwise provided for in this Constitution the term of office of the Wereda Chief Administrator is for the duration of the mandate of the Wereda Council.

Article 94

Power and Functions of Wereda Chief Administrator

- 1/ The Wereda Chief Administrator shall be the Chief Executive of the Wereda administration and Chairman of the Administrative Council and Administrator.
- 2/ The Chief Administrator shall be accountable to the Wereda Council and Chief Executive of the Region and shall:
 - (a) Represent the Wereda Administration;
 - (b) Preside over, and direct, the Wereda Administrative Council;
 - (c) Ensure the proper implementation, of the Federal and Regional State policies, laws, regulations, directives and programmes in the Wereda;
 - (d) Submit to the Wereda Council for approval the appointment of members of the Wereda Administrative Council including the Deputy Wereda Administrator who shall be a member of the Council;

- (e) Coordinate, direct, supervise the various institutions of the Wereda Administration and Kebeles in the Wereda;
- (f) Supervise, follow up and direct the timely preparation and implementation of social services and economic development programmes and plans;
- (g) Direct and supervise the police and security forces, which are established to maintain law and order in order to adequately preserve the peace and security of the residents of the Wereda;
- (h) Submit periodical reports to the Wereda Administrative Council, Wereda Council and Superior Administrative Organs;
- (i) Without prejudice to sub-Article 2 of Article 94 of this Constitution, the Chief Administrator shall call the first session of the new Wereda Council;
- (j) Perform such other functions as may be entrusted by the Wereda Council and the Chief Executive.

Article 95

Powers and Functions of Wereda Deputy Chief Administrator

The Deputy Chief-Administrator shall have the following powers and functions:

- 1/ Perform such other functions as may be entrusted to him by the Chief Administrator and Wereda Administrative Council.
- 2/ Act on behalf of the Chief Administrator in his absence and when he is unable to carry out his functions.
- 3/ Be accountable to the Chief Administrator and Administrative Council.

Article 96

Office of the Chief Administrator

- 1/ The Chief Administrator shall have its own Office and the Office shall have a Head who is elected and assigned by him;
- 2/ The Office of the Chief Administrator may also serve as the office of the Wereda Administrative Council;
- 3/ The powers and functions of the Office of the Chief Executive provided for in this Constitution shall, as the case may be, be applicable to the Office of the Chief Administrator of the Wereda.

CHAPTER TEN

STRUCTURE AND POWER OF THE KEBELE ADMINISTRATION

Article 97

Structure and Accountability

- 1/ The Kebele Administration is the lowest administrative unit of the Regional State and shall, as the case may be, be accountable to the City or Wereda Administration in accordance with this Constitution.
- 2/ The Kebele Administration shall have the following major organs:
 - (a) The Kebele Council;
 - (b) The Kebele Administrative Council; and
 - (c) The Social Court.

Article 98

The Kebele Council

- 1/ The Kebele Council shall be established as the highest authority of the Kebele in accordance with this Constitution.
- 2/ The members of the Kebele Council shall be directly elected by the residents of the Kebele and shall be accountable to the people who elected them.
- 3/ The Kebele Council shall be accountable to the Wereda Council.

Article 99

Powers and Functions of the Kebele Council

Without prejudice to the generality stated in sub-Article 1 of Article 98 the Kebele Council shall have the following powers and functions:

- 1/ Implement the plans and directives issued from time to time by the Wereda Council and Wereda Administrative Council within its Kebele and may issue working directives of the Kebele;
- 2/ Issue directives on social matters and implement it within the Kebele consistent with policies, laws, regulations, and directives issued by its superior Administrator organs;
- 3/ Elect its Speaker, Deputy Speaker and Administrator from among the members of Kebele Council; organize the Kebele Administrative Council;
- 4/ Approve the appointment of the judges of the social court submitted to it by the Administrator of the Kebele based on the opinion of the residents;
- 5/ Issue detailed guidelines for the implementation of the socio-economic and administrative plans and programmes issued to it by its superior organs and follow up the implementation of same;
- 6/ Issue other plans useful for the residents of the Kebele and follow-up closely its implementation;

- 7/ Mobilize the residents of the Kebele for development activities; follow-up closely the protection and preservation of natural resources;
- 8/ Ensure the preservation of peace and security as well as the maintenance of law and order;
- 9/ Call for questioning the Administrator and Deputy Administrator and evaluate the performance of the executive organ.
- 10/ Determine the division of work and assignment among the Kebele Administrative Council and other Sub-committees.

Article 100

Leadership of the Kebele Council

- 1/ The Kebele Council shall have its own office and shall be led by a Speaker and Deputy Speaker elected from among the members of the Council.
- 2/ The Speaker shall be accountable to the Kebele Council and call and preside over the meetings of the Council, and ensure the preparation of the agenda and minutes, and follow-up and supervise the custody of documents.
- 3/ The Deputy speaker shall be accountable to the Speaker and Kebele Council and shall:

- (a) Perform such other duties as may be assigned to him by the Speaker.
- (b) Act on behalf of the Speaker in his absence and when he is unable to exercise his functions.

Article 101

Sessions and Term of Mandate

- 1/ The Kebele Council shall hold its session every month.
- 2/ The presence of more than half of the members of the Council at a meeting constitutes a quorum. The decision of the Council shall be passed by a majority vote of the members present at a meeting.
- 3/ The term of the Council shall be five years. Election for a new Council shall be concluded one month prior to the expiry of the Council's term. The new Council shall convene within fifteen days of the expiry of the term of office of the outgoing Council.
- 4/ The meeting of the Kebele Council shall be held in public. The Speaker of the council may call an extra ordinary meeting when the council is not in session. The Speaker has the obligation to call a meeting of the council at the request of the Kebele Administrator or of more than one half of the members of the Council.

Article 102

The Kebele Administrative Council

- 1/ The Kebele Administrative Council comprises the Administrator and Deputy Administrator and workers elected from social service- rendering governmental institutions within the Kebele and which shall implement the laws, regulations and directives issued by its superior bodies.
- 2/ The Kebele Administrative Council is accountable to the Administrator, Kebele Council from which it was elected, and City Administration under which the Kebele is organized and or Woreda Administration, as the case may be.
- 3/ The members of the Kebele Administrative Council shall individually and collectively direct and coordinate the activities of the Kebele Administration.
- 4/ The members of the Kebele Administrative Council are collectively responsible for their collective decision and actions.

Article 103

Powers and Functions of the Kebele Administrative Council

- 1/ Without prejudice to sub-Article 1 of Article 102 of this Constitution, the Kebele Administrative Council shall have the following powers and functions:

- (a) Implement the development plans and programmes issued by Kebele Council, formulate its own development plan and submit it to the Council for approval;
 - (b) Follow up and supervise the implementation of plans of social services in the Kebele;
 - (c) Accelerate rural development, ensure that the preservation and development of the natural resource is performed on a larger scale; mobilize the people to engage in developmental activities;
 - (d) Preserve peace and security in the Kebele;
 - (e) Preserve and protect all antiquities found in the Kebele, notify its superior bodies about the exploitation of same;
 - (f) Submit periodical reports on its activities and perform such other duties as may be assigned to it by the Kebele Council.
- 2/ The Kebele Administrative Council shall prepare plans of activities, follow up and evaluate same through timely contact.

Article 104

Election and Term of Office of Kebele Administrator

- 1/ The Kebele Administrator shall be elected from among the members of the Kebele Council upon recommendation by a political party or political parties with a majority seats in the council.
- 2/ Unless otherwise provided for in this Constitution the term of office of the Kebele Administrator shall be for the duration of mandate of Kebele Council.

Article 105

Powers and Functions of the Kebele Administrator

- 1/ The Kebele Administrator is accountable to the Kebele Council and to the City and or Wereda Administration, under which the Kebele is organized, as the case may be, and shall be the Chief Executive of the administration and preside over the Administrative Council.
- 2/ Without prejudice to the generality stated under sub-Article 1 of this Article the Administrator shall have the following powers and functions:
 - (a) Preside over and direct, the meeting of the Kebele Administrative Council;
 - (b) Follow up and supervise the implementation of policies, laws, regulations, directives and plans issued by his superior bodies in the Kebele;

- (c) Submit to the Kebele Council for approval the appointment of members of the Kebele Administrative Council including the Deputy Administrator;
- (d) Submit the list of judges of the Kebele Social Courts to the Kebele Council for appointment based on the opinion of the residents of the Kebele after having the list screened by the Kebele Administrative Council;
- (e) Submit periodical reports to the Kebele Council and Kebele residents and to the City or Wereda Administrative Council, as the case may be;
- (f) Without prejudice to the provision of Article 104(2), the Administrator shall convene the first session of the Kebele council;
- (g) Perform such other functions as may be entrusted to him by the Kebele Administrative Council, Kebele Council and the City or Wereda Administration, as the case may be.

Article 106

Powers and Functions of the Deputy Administrator

The Deputy Administrator shall be appointed upon the recommendation of the Administrator and shall:

- 1/ Perform such other functions as may be entrusted to him by the Kebele Administrative Council and the Administrator;
- 2/ Act on behalf of the Administrator in his absence and when he is unable to exercise his functions.
- 3/ Be accountable to the Kebele Administrator and Kebele Administrative Council.

Article 107

Kebele Administration Office

- 1/ The Kebele Administration shall have its own office.
- 2/ The Kebele Administrative Council and the Kebele Council may use the Office
- 3/ The Kebele Administration shall exercise general supervision over the Head of the Office of the Kebele Administration

Article 108

Kebele Social Court

1. The Kebele Social Court is hereby established as a social judicial organ of the Kebele. Particulars shall be determined by law.
2. Judges of the Kebele Social Court shall be appointed in accordance with sub-Article 4 of Article 99 of this Constitution.
3. The term of Office of the Social Court shall be for the duration of the mandate of the kebele.

CHAPTER ELEVEN

PRINCIPLES AND OBJECTIVES OF THE REGIONAL STATE POLICY

Article 109

Objectives

- 1/ Any governmental organ shall be guided by the principles and objectives mentioned in this Chapter in implementing the Federal and Regional State Constitutions, other laws and policies.

- 2/ In this Chapter, "Government" means The Benishangul Gumuz Regional State.

Article 110

Political Objectives

- 1/ Guided by democratic principles, the Government shall promote and support the People's self-rule at all levels.
- 2/ Government shall respect the identity of Nationalities and Peoples. Accordingly Government shall have the duty to strengthen ties of equality, unity and fraternity among them.
- 3/ In order to make the country's vision of accelerated development a reality, there shall be established a good governance down to the kebele level which is free from corruption, transparent, accountable to the people, efficient and effective.

Article 111

Economic Objectives

- 1/ The Government shall have responsibility to devise ways and means to make all residents of the State benefit from the Region's legacy of intellectual and material resources.
- 2/ The Government shall have the duty to ensure that all residents of the State get equal opportunities to improve their economic conditions and to promote equitable distribution of wealth among them.